

Rajendra Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · Writ - C No. 22670 of 2022 · **Liberty to seek instalments under para 6.14; recovery not quashed**

HEADNOTE

Writ to quash a 6 June 2022 electricity recovery citation. Petitioner was willing to pay the dues in instalments. The Division Bench disposed of the petition with liberty to approach the competent authority under para 6.14 of the U.P. Electricity Supply Code, 2005. The citation was not quashed on merits.

FACTUAL SUMMARY

Rajendra Prasad filed a writ petition in the Allahabad High Court seeking a certiorari quashing a recovery citation dated 6 June 2022 issued by respondent no. 4. His counsel submitted that he was ready and willing to deposit the entire electricity dues in instalments. Counsel for respondent no. 2 stated that for payment of dues in instalment the petitioner may approach the competent authority under para 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where a consumer facing a recovery citation is willing to pay electricity dues in instalments, the High Court may dispose of the writ by giving liberty to approach the competent authority under para 6.14 of the U.P. Electricity Supply Code, 2005, without quashing the citation on merits. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court accepted the licensee's submission and relegated the petitioner, who offered to pay dues in instalments, to the competent authority under para 6.14 rather than examining or quashing the recovery citation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 6 JUNE 2022

Certiorari to quash the citation was prayed but the petition was disposed of on the 6.14 liberty without examining the citation. ¶ 1